

H.R. XX

A Bill to prohibit chemical additives and flavoring agents in tobacco products

Pure Tobacco Act

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE

This Act may be cited as the **Pure Tobacco Act** or the **PTA**.

SEC. 2. FINDINGS

Congress makes the following findings:

- (1) The addition of non-tobacco substances and chemical additives to tobacco products may increase toxicity, alter palatability, and enhance addictiveness;
- (2) Chemical additives and flavoring agents in tobacco products, including menthol and fruit flavors, have been demonstrated to increase youth initiation and reduce cessation rates;
- (3) The public health interest in protecting citizens from harmful tobacco products includes ensuring that such products are not made more attractive or less harmful through the use of deceptive additives;
- (4) Regulation of tobacco products and their constituents is within the constitutional authority of Congress under the Commerce Clause and is necessary to protect interstate commerce and public health;

SEC. 3. DEFINITIONS

In this Act:

Chemical additive.—The term 'chemical additive' means any substance, compound, or ingredient other than raw leaf tobacco and water, intentionally added to a tobacco product during any stage of manufacturing, processing, packaging, or distribution.

Flavoring agent.—The term 'flavoring agent' means any synthetic or natural substance added to a tobacco product that imparts a distinguishing aroma, flavor, or sensation, including but not limited to menthol, fruit, sweet, spice, or cooling sensations.

Manufacturer.—The term 'manufacturer' has the meaning given the term in section 900(15) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 387(15)).

Secretary.—The term 'Secretary' means the Secretary of Health and Human Services.

Tobacco product.—The term 'tobacco product' has the meaning given the term in section 900(16) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 387(16)).

SEC. 4. PROHIBITION ON CHEMICAL ADDITIVES AND FLAVORING AGENTS

(a) **In General.**—Notwithstanding any other provision of law, no person shall manufacture, sell, offer for sale, distribute, or import for sale in the United States any tobacco product that contains any chemical additive or flavoring agent.

(b) **Prohibition on Advertising.**—No person shall advertise or promote any tobacco product by representing that such product does not contain chemical additives or flavoring agents unless such representation is accurate and substantiated.

SEC. 5. TESTING, INSPECTION, AND COMPLIANCE

(a) **Manufacturer Submissions.**—The Secretary may require any manufacturer or importer of tobacco products to submit samples of their products for laboratory analysis to verify compliance with section 4.

(b) **Record-Keeping Requirements.**—Every manufacturer or importer shall maintain detailed records of all raw materials, water sources, additives, and processes used in the manufacturing of tobacco products and shall provide such records to an authorized representative of the Secretary upon request.

(c) **Inspection Authority.**—The Secretary shall have the authority to conduct inspections of any facility where tobacco products are manufactured, processed, stored, or distributed to ensure compliance with this Act. Such inspections may be conducted without advance notice.

SEC. 6. ENFORCEMENT

(a) **Seizure and Detention.**—Any tobacco product that fails to comply with section 4 shall be subject to seizure, detention, and forfeiture by the Secretary. The Secretary may order the destruction of any seized product.

(b) **Injunctive Relief.**—The Secretary may seek an injunction in any United States district court to enjoin any person from violating this Act or any regulation issued under this Act.

(c) **Notice and Opportunity to Respond.**—Before taking enforcement action, the Secretary shall provide the affected person with notice of the violation and an opportunity to respond. The Secretary shall establish procedures for this notice and opportunity consistent with the Administrative Procedure Act.

SEC. 7. PENALTIES

(a) **Civil Penalty.**—Any person who violates this Act or any regulation issued under this Act shall be subject to a civil penalty of not less than \$100,000 and not more than \$1,000,000 per violation. Each day of violation shall constitute a separate offense.

(b) **Criminal Penalty.**—Any person who willfully violates this Act or any regulation issued under this Act shall be subject to criminal penalties as follows:

- (1) a fine of not less than \$250,000 and not more than \$2,000,000; or
- (2) imprisonment for not more than five (5) years; or
- (3) both such fine and imprisonment.

(c) **Corporate Liability.**—If a violation of this Act is committed by a corporation, any officer, director, employee, or agent of the corporation who directed, authorized, or knew of the violation and failed to prevent it shall be jointly and severally liable for the penalties under this section.

SEC. 8. RULEMAKING

The Secretary, in accordance with the Administrative Procedure Act, shall issue such regulations as may be necessary and appropriate to carry out the purposes and provisions of this Act, including regulations:

- (a) prescribing testing methodologies, procedures, and standard thresholds for detecting and quantifying chemical additives and flavoring agents;
- (b) establishing maximum permissible levels of naturally occurring impurities in raw tobacco leaf or water;
- (c) defining requirements for record-keeping, reporting, and product certification by manufacturers and importers;
- (d) establishing procedures for manufacturer submissions and laboratory analysis;
- (e) defining the scope and procedures for inspection and enforcement; and
- (f) establishing a process for seeking variances or exemptions from this Act based on scientific evidence, if appropriate.

SEC. 9. EFFECTIVE DATE AND TRANSITIONAL PROVISIONS

(a) **Effective Date.**—This Act shall take effect 180 days after the date of enactment.

(b) **Transition Period.**—Section 4 shall not apply to tobacco products manufactured prior to the effective date of this Act, provided that such products may be sold or distributed within 180 days after the date of enactment. After such 180-day period, all tobacco products in commerce must comply with section 4.

SEC. 10. PREEMPTION

(a) **Preemption of State and Local Laws.**—This Act shall preempt any State or local law, regulation, or ordinance that is less stringent than the requirements of this Act. Nothing in this Act shall be construed to prevent a State or political subdivision from adopting or enforcing any requirement that is more stringent than the requirements of this Act.

(b) **Construction.**—This Act shall not be construed to affect or modify any provision of the Federal Food, Drug, and Cosmetic Act or any regulation issued under that Act, except as expressly provided in this Act.

SEC. 11. SEVERABILITY

If any provision of this Act, or the application thereof to any person or circumstance, is held to be invalid or unconstitutional, the remaining provisions and the application of such provision to other persons or circumstances shall not be affected thereby.

SEC. 12. AUTHORIZATION OF APPROPRIATIONS

There are authorized to be appropriated such sums as may be necessary to carry out this Act.

